

tees, for they take a new estate (*a*). In order to avoid these onerous fines, where the estate devolves on several trustees, all the trustees but one may disclaim or release to that one, who can then be admitted, and the lord can then claim only a single fine (*b*). But there may be some risk in adopting this course otherwise than with the sanction of the Court, since to vest the legal estate in one trustee alone must in strictness be viewed as a breach of trust, and the expected pecuniary advantage might, by the early death of the trustee who is admitted in the lifetime of his co-trustees, be turned into a loss, and then the trustees might be held liable for the detriment to the trust estate. The last contingency might be guarded against by an insurance, effected either at an annual premium or for a gross sum payable in advance. But besides this, where discretionary powers are annexed to the trusteeship, the severance of the estate from the ordinary devolution of the *trust* might affect the powers; as, if a power of sale be given to the *heir* of the *survivor*, and A. is admitted and B. survives, can the heir [or legal personal representative (*c*)] of B. sell? (*d*).

Disclaimer to avoid a fine.—Where a copyhold has been surrendered to several trustees, there can be no disclaimer by one trustee, for the purpose of vesting the entire estate in the co-trustees, where that one trustee, by having acted as owner, has virtually accepted the estate (*e*). And where a testator devised to three trustees, whom he appointed executors, and one disclaimed and the two others proved the will, but, wishing to escape the double fine, put forward the heir to be admitted as the person upon whom the estate descended until the devisees were admitted, it was held that the lord was justified in refusing to admit the heir; and the Court, in the exercise of its discretionary power, would not issue a mandamus to compel him (*f*). But in the same case,

(*a*) Sheppard *v.* Woodford, 5 M. & W. 608; but see Wilson *v.* Hoare, 10 Ad. & Ell. 236.

(*b*) Wellesley *v.* Withers, 4 Ell. & Bl. 750; and see Paterson *v.* Paterson, 2 L. R. Eq. 31; S. C. 35 Beav. 506; *Re* Flitercroft, 1 Jur. N. S. 418.

[*c*] See 44 & 45 Vict. c. 41, s. 30; and see *ante*, p. 233.]

(*d*) Wilson *v.* Bennett, 5 De G. & Sm. 475.

(*e*) Bence *v.* Gilpin, 3 L. R. Ex. 76.

(*f*) Queen *v.* Garland, 5 L. R.